Re: Urgent Notification: Prosecutorial Misconduct & Constitutional Violations – MT Bar Complaint ODC No. 25-147, Supp. Submission #3.1

From MISJusticeAlliance <legalcoalition@protonmail.com>

To khabst@missoulacounty.us

CC bakulah@ci.missoula.mt.us, mayor@ci.missoula.mt.us

Date Sunday, October 5th, 2025 at 01:37

This follow-up correspondence from the Anonymous Legal Assistance Group (MISJusticeAlliance) addresses continued concerns regarding prosecutorial conduct by Brian Lowney, now supported by additional evidence from Bryan Tipp's October 2025 response to Montana Bar Complaint ODC No. 25-147 and comprehensive analysis of the underlying stalking charge documents from September 2018.

The newly available documentation reveals a pattern of institutional failure that extends beyond the prosecutorial misconduct previously outlined, demonstrating coordinated efforts to suppress constitutional rights and obstruct justice through compromised investigations and inadequate legal representation.

Enhanced Evidence of Prosecutorial Misconduct

Reliance on Compromised Investigative Sources : The charging documents reveal that prosecutor Brian Lowney built the entire stalking case on information provided by Detective Ethan Smith, who was demonstrably compromised from the outset. Critical undisclosed facts include:

- Detective Smith maintained a close personal relationship with complainant E'Lise Chard, creating an irreconcilable conflict of interest
- Mr. Nuno's parents filed formal complaints demanding Smith cease contact with them
- Smith was ultimately removed from the case by his commanding officer due to "obvious impropriety"
- Multiple statements attributed to Mr. Nuno's parents were fabricated, including claims about mental health issues and technical capabilities

Constitutional Violations Through Protected Speech Prosecution : Most egregiously, the prosecution proceeded with charges based on formal workplace complaints to the YWCA that Judge Warren had already ruled from the bench constituted protected speech under the First Amendment . This judicial determination should have precluded any subsequent prosecution based on the same conduct, yet Lowney continued to pursue charges in direct defiance of established constitutional protections.

Brady Violations and Evidence Suppression : The prosecution's failure to disclose Detective Smith's compromise and removal from the case constitutes clear Brady violations, denying the defense access to material exculpatory evidence. This pattern of evidence suppression continues the prosecutorial misconduct detailed in our initial correspondence.

Systemic Defense Counsel Failures

Bryan Tipp's October 2025 response to the bar complaint reveals fundamental misunderstandings of constitutional law and strategic defense obligations. Rather than addressing these failures, Tipp's response demonstrates:

Mischaracterization of Protected Speech : Tipp actually agreed with prosecutors that formal workplace complaints could constitute grounds for "extreme emotional distress," demonstrating a complete failure to understand First Amendment protections.

Failure to Challenge Obvious Constitutional Violations : Despite Judge Warren's clear ruling on protected speech, Tipp failed to move for dismissal based on constitutional grounds or challenge the use of compromised investigative sources.

Deflection Rather Than Accountability : Instead of addressing his constitutional failures, Tipp's response resorts to character assassination, describing Mr. Nuno's legitimate grievances as "lies, misrepresentations and falsifications" and "attempted extortion, harassment and intimidation".

Institutional Pattern of Rights Suppression

The evidence now demonstrates a coordinated pattern involving multiple institutional actors:

- Prosecutorial Office : Knowingly used compromised sources and pursued charges against protected speech
- Missoula Police Department : Allowed compromised officer to continue investigation despite obvious conflicts of interest
- Defense Counsel : Failed to protect constitutional rights and potentially colluded with prosecution
- YWCA : Participated in coordinated harassment through workplace retaliation

This pattern represents not isolated misconduct but systematic abuse of governmental and institutional power to suppress First Amendment activities and obstruct justice.

Federal Civil Rights Implications

The evidence now clearly establishes federal civil rights violations under 42 U.S.C. § 1983 , including:

Conspiracy Against Rights (18 U.S.C. § 241): The coordinated effort between prosecutorial office, police department, and private parties to suppress protected speech activities.

Deprivation of Rights Under Color of Law (18 U.S.C. § 242): Lowney's prosecution of constitutionally protected speech activities using governmental authority.

Due Process Violations : The systematic denial of fair legal proceedings through compromised investigations and inadequate representation.

<u>Immediate Action Required</u>

The institutional failures documented in this matter demand immediate corrective action:

Independent Investigation : A truly independent investigation of prosecutorial misconduct, free from local political influence and conducted by external authorities with appropriate federal oversight.

Constitutional Training : Mandatory training for all prosecutorial staff on First Amendment protections, Brady obligations, and the improper use of compromised investigative sources.

Case Review : Comprehensive review of all cases involving Detective Smith and prosecutor Lowney to identify additional constitutional violations and potential wrongful convictions.

Disciplinary Action : Appropriate professional discipline for prosecutors and law enforcement officials who participated in this systematic abuse of authority.

Policy Reform : Implementation of policies preventing the use of compromised investigative sources and ensuring compliance with constitutional protections for protected speech activities.

Continuing Monitoring and Documentation

MISJusticeAlliance continues to document the ongoing pattern of institutional misconduct and constitutional violations. The complete evidence file, including the charging documents, defense counsel failures, and prosecutorial responses, remains available at ywcaofmissoula.com for public review and institutional accountability.

The systemic nature of these violations - spanning law enforcement, prosecution, and defense counsel - demonstrates institutional capture that requires external intervention and federal oversight to restore constitutional protections and public trust.

The full analysis of this misconduct is further documented here: https://www.ywcaofmissoula.com/Stalking-Charging-Documents-Systemic-Misconduct-and-Evidentiary-Failures-September-2018-282ca07db84980538fc3e17e6d1574ad

And here: https://www.ywcaofmissoula.com/MT-Bar-Complaint-ODC-No-25-147-BRYAN-TIPP-RESPONSE-TO-DISCIPLINARY-COMPLAINT-October-2025-282ca07db84980d28e1fe314ca895520

We await your office's response detailing specific corrective measures and timelines for addressing these documented constitutional violations and institutional failures.

Respectfully submitted,

Anonymous Legal Assistance Group

(MISJusticeAlliance)

This correspondence serves as formal notice of continuing constitutional violations and institutional misconduct requiring immediate remedial action to restore public confidence in prosecutorial integrity and constitutional protections.

Sent with Proton Mail secure email.

On Sunday, September 21st, 2025 at 21:41, MISJusticeAlliance <legalcoalition@protonmail.com> wrote:

> To: Missoula County Prosecutors Office
>
> This correspondence is submitted by the Anonymous Legal Assistance Group (MISJusticeAlliance) to formally notify your office of grave concerns regarding prosecutorial conduct of prosecutor Brian Lowney as detailed in

Section VII of the referenced supplemental submission to MT Bar Complaint ODC No. 25-147.

The complaint sets forth the following key allegations:

- Acceptance of and pursuit of an unconstitutional condition that violates the First Amendment rights of the complainant, Elvis Nuno, under color of law;
- Abuse of prosecutorial authority to suppress protected speech and retaliate against the exercise of those constitutional rights;
- Willful and ongoing conduct with potential civil rights liability under federal law, including but not limited to 42 U.S.C. § 1983 and related statutes.

Specific patterns of misconduct include:

- Filing charges absent probable cause or adequate investigation of exculpatory evidence;
- Suppression of relevant evidence and police reports (Brady violations);
- Escalation of bail to punitive levels for speech-related, non-violent offenses;
- Continuation of criminal prosecution even after judicial findings recognized the protected nature of the underlying conduct as First Amendment activity;
- Coordination with private parties resulting in retaliatory legal actions, particularly following petition activity and whistleblower complaints.

These actions oppose the fundamental duties of your office and have contributed to extensive economic, reputational, and psychological injury to Mr. Nuno and his family. The evidence further demonstrates that such retaliation occurred in direct response to protected complaints regarding institutional misconduct, including formal grievance submission and public statements.

The incidents described in Section VII constitute prosecutorial misconduct and demand immediate, independent investigation. Your office is requested to:

- Review the detailed findings and case narrative attached to Supplemental Submission #3.1;
- Examine the systemic failure in protecting constitutional speech rights and preventing abuse of prosecutorial power;
- Provide written clarification of steps being undertaken to address these issues and ensure compliance with constitutional and ethical standards;
- Take all appropriate measures to prevent ongoing harm, ensure transparency, and restore public trust in prosecutorial integrity.

Additional materials and extensive documentation regarding misconduct committed by Missoula County Prosecutors staff can be reviewed here.

MISJusticeAlliance will continue to monitor and document the situation and welcomes further dialogue in pursuit of institutional accountability.

Sincerely,

Anonymous Legal Assistance Group
(MISJusticeAlliance)

Sent with Proton Mail secure email.

917 bytes 1 file attached

publickey - legalcoalition@protonmail.com - 0x7F0BE062.asc 917 bytes